

K Scan AI Terms and Conditions

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Terms Summary

- This Terms Summary is provided for convenience only and is not a substitute for the complete Terms below. If there is any conflict between this summary and the full Terms, the full Terms control.
- K Scan AI provides AI-powered fashion discovery, visual analysis, and commerce-routing tools.
- AI outputs may be incomplete, approximate, inaccurate, or outdated; evaluate them before relying on them.
- You retain ownership of your uploaded content. K Scan receives only the limited rights needed to operate, secure, maintain, and improve the Service as described below.
- K Scan does not sell raw uploaded scans or images and does not use scan content for facial recognition or biometric surveillance.
- Certain non-sensitive commercial, analytics, preference, marketing, attribution, and inference data may be used, sold, shared, licensed, or disclosed where permitted by law and subject to privacy rights, consent requirements, and opt-out controls.
- Paid subscriptions, in-app purchases, or other paid features may automatically renew at the billing period and price disclosed at checkout unless canceled as described in these Terms and any applicable app-store terms.
- In-app purchases and subscription fees made through the iOS app may be processed by Apple. In-app purchases and subscription fees made through the Android app may be processed by Google Play. Those purchases are also subject to the applicable Apple or Google terms and billing rules.
- K Scan is committed to providing accessible digital experiences for users with disabilities, including through ongoing efforts consistent with the Americans with Disabilities Act and applicable accessibility standards.

These Terms and Conditions ("Terms") govern your access to and use of the K Scan AI website, mobile application, APIs, AI systems, software, visual commerce tools, and related products, services, and features (collectively, the "Service"). By accessing or using the Service, you agree to these Terms and our Privacy Policy. Any consent required for non-essential tracking, targeted advertising, or sale-like data monetization will be requested separately where required by applicable law.

1. Definitions

Service: the K Scan AI platform, including websites, applications, APIs, AI systems, visual commerce systems, and related services.

AI Outputs: recommendations, styling suggestions, visual matches, product identifications, similarity analyses, commerce-routing results, generated metadata, or other outputs generated through the Service.

User Content: images, photographs, screenshots, text, styling inputs, prompts, profile information, and other materials uploaded or submitted by users.

Retail Partners: third-party retailers, marketplaces, affiliate partners, advertisers, brands, or commerce providers linked through or measured by the Service.

Commercial Data: non-sensitive usage, preference, shopping, product interaction, attribution, analytics, marketing, de-identified, aggregated, anonymized, or inference data generated through or related to use of the Service.

Raw Scan Data: original camera uploads, image files, screenshots, QR/barcode captures, or other unaltered content submitted for scanning.

Derived Scan Data: metadata or analysis generated from a scan. K Scan does not monetize derived scan data that can reasonably be linked to a specific person or original image unless expressly disclosed and lawfully authorized where required.

2. Acceptance of Terms and Separate Privacy Choices

By creating an account, accessing, downloading, registering for, or using the Service, you agree to these Terms and all applicable laws. If you do not agree, you may not use the Service.

Where applicable law requires separate consent for non-essential tracking, targeted advertising, sale-like data monetization, or similar activities, that consent will not be bundled into acceptance of these Terms. If you decline or withdraw such consent, you may still use the core Service, although optional personalization, marketing, advertising-supported, or partner-supported experiences may change.

3. Eligibility

You must be at least 13 years old to use the Service. If you are under the age of majority where you live, you may use the Service only with permission from a parent or legal guardian. You may not use the Service if prohibited by law or if K Scan previously terminated or suspended your access.

4. Accounts and Security

- Provide accurate, complete, and current information.
- Maintain the confidentiality of your login credentials.
- Accept responsibility for activity that occurs under your account.
- Notify K Scan promptly if you suspect unauthorized access, account misuse, or a security issue.

5. Privacy, Data Processing, Sale, Sharing, and Commercial Use

Your use of the Service is governed by our Privacy Policy, which is incorporated into these Terms by reference. K Scan may collect, process, use, sell, share, license, disclose, or otherwise make available certain categories of information where permitted by law and subject to applicable privacy rights, consent requirements, and opt-out controls.

- Uploaded images and scans may be processed by AI systems to operate, secure, maintain, and improve the Service.
- K Scan does not sell raw uploaded scans or images.
- K Scan does not use uploaded scan content for facial recognition, biometric surveillance, or to identify individuals.
- K Scan may use, sell, share, license, or disclose certain non-sensitive commercial, analytics, preference, marketing, attribution, and inference data for business, analytics, advertising, retail, affiliate, product improvement, partner reporting, and other commercial purposes where permitted by law.
- K Scan may sell or share certain personal information where permitted by law, including identifiers, device identifiers, internet or network activity, usage data, commercial information, preference data, approximate location, marketing engagement data, and inferences, subject to applicable rights and choices.
- Privacy rights, opt-out requests, consent withdrawal, data retention, and deletion handling are described in the Privacy Policy.

5.1 Data Rights and Downstream Requests

Users may request access, correction, deletion, export, restriction, objection, or consent withdrawal where required by applicable law. K Scan may retain information where legally permitted for security, fraud prevention, legal compliance, dispute resolution, backup recovery, or legitimate business records. Where required by law, K

Scan will take reasonable steps to notify relevant service providers, contractors, and third parties to whom covered information was sold or shared so they can act on verified deletion requests.

5.2 Non-Discrimination for Privacy Choices

K Scan will not unlawfully discriminate against users for exercising privacy rights. Core Service access will not be denied solely because a user opts out of sale, sharing, or targeted advertising, although optional personalized, marketing, advertising-supported, or partner-supported experiences may change as a result.

6. User Content and Limited License

You retain ownership of your User Content. By submitting User Content, you grant K Scan a limited, non-exclusive, worldwide, royalty-free license to host, process, analyze, reproduce as technically necessary, display to you, transform, and transmit your User Content solely for the purposes below:

- Operating, securing, and maintaining the Service.
- Generating AI Outputs you request.
- Safety, moderation, diagnostics, quality assurance, and fraud prevention.
- Improving machine-learning systems and product performance in ways permitted by the Privacy Policy and applicable law.

This license does not transfer ownership of your raw uploaded images to K Scan. It does not authorize K Scan to sell, license, or commercially distribute raw scan files, biometric identifiers, facial recognition data, or re-identifiable scan datasets to third-party data buyers or AI training partners unless a future policy expressly discloses that practice and K Scan obtains any legally required separate consent.

K Scan may create and use aggregated, anonymized, or de-identified analytics, commercial, preference, and inference data from Service use, and may use, sell, share, license, or disclose such data for business purposes where permitted by law and described in the Privacy Policy.

7. AI Processing and Outputs

- AI Outputs are probabilistic and may contain inaccuracies, incomplete information, or visually similar but non-identical products.
- Pricing, brand identification, availability, fit, authenticity, and retailer information may be inaccurate or change without notice.
- AI Outputs are for discovery and informational purposes and do not constitute professional advice, authentication advice, sizing advice, legal advice, financial advice, resale advice, or purchasing advice.
- K Scan may improve, retrain, refine, or modify AI systems, subject to applicable legal requirements and the Privacy Policy.
- You are responsible for independently evaluating AI Outputs before relying on them.

8. Retail, Affiliate, and Third-Party Commerce Disclaimer

K Scan is a visual-commerce discovery platform. We do not manufacture, inspect, authenticate, warehouse, endorse, ship, fulfill, or guarantee products displayed through the Service. Third-party retailers, marketplaces, advertisers, brands, and affiliate partners are independent from K Scan unless expressly stated.

- We do not guarantee product authenticity, pricing, availability, sizing, quality, legality, safety, shipping, fulfillment, return policies, warranties, or seller legitimacy.
- All purchases, returns, disputes, warranties, and transactions with third parties are solely between you and the applicable third party.
- K Scan may receive compensation, referral fees, affiliate revenue, advertising revenue, data licensing revenue, partner reporting revenue, or other commercial consideration from partners.

9. User Responsibilities and Prohibited Uses

- Do not upload content you do not have the legal right to use.
- Do not upload government identification, financial records, medical information, confidential documents, or sensitive third-party data unless a feature expressly requires it and you have the right to do so.
- Do not reverse engineer, scrape, decompile, benchmark without authorization, bypass rate limits, attack the Service, attempt prompt injection, attempt model extraction, or use outputs to train competing AI systems.
- Do not upload unlawful, infringing, counterfeit, harmful, abusive, hateful, sexually exploitative, deceptive, or harassing content.
- Do not use the Service for illegal activity, fraud, abuse, unauthorized surveillance, or violation of third-party rights.

10. Intellectual Property

The Service, including software, AI systems, recommendation engines, visual-analysis systems, model workflows, interface systems, graphics, trade dress, brand elements, documentation, and related technology, is owned by K Scan or its licensors. No ownership rights are transferred to users. All rights not expressly granted are reserved.

11. Beta, Preview, and Experimental Features

Beta, preview, early access, or experimental features may contain bugs, inaccuracies, interruptions, security issues, or incomplete functionality. They are provided on an "as is" and "as available" basis, may change or be discontinued at any time, and are used at your own risk.

12. Payments, Subscriptions, Auto-Renewal, and Future Monetization

K Scan may introduce subscriptions, paid features, in-app purchases, affiliate monetization, advertising, data licensing, partner insights, enterprise tools, APIs, or other commercial models. Paid features may be subject to additional terms, app-store rules, refund policies, checkout disclosures, or separate agreements.

12.1 Paid Features and Checkout Disclosures

Before you complete a paid purchase directly through K Scan or through an app-store purchase flow, the applicable checkout screen or purchase flow will disclose the material terms of the transaction, which may include the price, billing period, renewal terms, cancellation method, taxes or fees where applicable, and any free trial or promotional period.

You are responsible for reviewing the applicable purchase terms before confirming payment.

12.2 Important Auto-Renewal Disclosure

Some K Scan subscriptions may automatically renew on a recurring basis, such as monthly, annually, or another billing period shown at checkout. Unless you cancel before the end of the then-current billing period or trial period, your subscription will renew automatically and you authorize the applicable payment provider, including Apple, Google, or another authorized payment processor, to charge the applicable subscription fee, plus any taxes or fees, using your selected payment method or app-store account.

Unless a price change is disclosed and accepted or permitted under applicable law and platform rules, each renewal will occur at the same rate and billing period disclosed at checkout.

12.3 Price Changes and Renewal Notices

If K Scan changes the price of a subscription, K Scan or the applicable app store will provide advance notice where required by law or platform policy. The notice will describe the new price and when it takes effect.

You have the right to reject a price increase by canceling your subscription before the new price takes effect. If applicable law or app-store policy requires your affirmative consent to a price increase, your subscription may not renew at the increased price unless you provide that consent through the applicable purchase flow.

12.4 Cancellation

You may cancel your subscription at any time with minimal effort using the cancellation method made available through the platform where you purchased the subscription. K Scan will not require you to contact customer support, complete unnecessary steps, or navigate obstructive retention flows in order to cancel a subscription.

For app-store subscriptions, a direct shortcut or deep-link to your platform's subscription management console will be provided within the K Scan AI mobile application settings panel where technically supported by the applicable platform.

If you subscribed through the Apple App Store, you may manage or cancel the subscription through your Apple account, Apple device settings, or other Apple-provided subscription management tools. Apple's current cancellation path generally allows users to go to the Settings app, tap their Apple Account name, tap Subscriptions, select the subscription, and cancel.

If you subscribed through Google Play, you may manage or cancel the subscription through your Google Play account, Google Play subscription settings, or other Google-provided subscription management tools. Google Play's current cancellation path generally allows users to open Google Play subscriptions, select the subscription or prepaid plan, tap Cancel subscription, and follow the on-screen instructions.

If K Scan offers a direct web checkout or direct billing option, K Scan will provide a reasonably accessible online cancellation method through the account, billing, or support tools associated with that direct subscription.

Cancellation stops future renewal charges. Unless otherwise stated at checkout or required by applicable law or app-store policy, cancellation does not automatically provide a refund for the then-current billing period, and you may continue to have access to the paid feature until the end of the current paid term.

12.5 Apple In-App Purchases and iOS Billing

If you make an in-app purchase or purchase a subscription through the K Scan iOS app on an Apple device, the payment may be processed by Apple through Apple's payment processing system and your Apple account. Apple's applicable terms, conditions, billing rules, cancellation procedures, tax handling, and refund policies may apply to that transaction.

K Scan does not control Apple's payment processing gateway, Apple account billing, payment method authorization, subscription management interface, charge timing, refund determinations, or Apple billing errors. Billing questions, refund requests, payment method issues, or cancellation requests for Apple-processed purchases should be handled through Apple's applicable account, subscription, support, or refund tools. K Scan may provide reasonable assistance for issues within K Scan's control, but K Scan is not responsible for Apple's payment processing or billing errors.

12.6 Google Play In-App Purchases and Android Billing

If you make an in-app purchase or purchase a subscription through the K Scan Android app on Google Play, the payment may be processed by Google through Google Play's billing system and your Google account. Google's applicable terms, conditions, billing rules, cancellation procedures, tax handling, and refund policies may apply to that transaction.

K Scan does not control Google Play's payment processing system, Google account billing, payment method authorization, subscription management interface, charge timing, refund determinations, or Google billing errors. Billing questions, refund requests, payment method issues, or cancellation requests for Google Play-processed purchases should be handled through Google Play's applicable account, subscription, support, or refund tools. K Scan may provide reasonable assistance for issues within K Scan's control, but K Scan is not responsible for Google's payment processing or billing errors.

12.7 Refunds

Refund availability may depend on where and how you purchased the paid feature. Purchases made through Apple or Google Play are generally subject to the applicable Apple or Google refund process and policies. Purchases made directly through K Scan, if offered, will be subject to the refund terms disclosed at checkout, any applicable supplemental terms, and applicable law.

13. Cookies, Tracking, Analytics, and Advertising Technologies

K Scan may use cookies, SDKs, pixels, analytics tools, device identifiers, attribution tools, advertising technologies, and marketing platforms as described in the Privacy Policy. Where legally required, non-essential analytics, advertising, and marketing technologies are subject to consent or opt-out rights.

14. DMCA and Copyright Complaints

If you believe content on the Service infringes your copyright, send a notice identifying the copyrighted work, the allegedly infringing material, your contact information, a good-faith statement, and a statement under penalty of perjury to:

Email: kscanai.app@gmail.com

15. Disclaimer of Warranties

THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE." TO THE MAXIMUM EXTENT PERMITTED BY LAW, K SCAN DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, AVAILABILITY, AND ERROR-FREE OPERATION.

Some jurisdictions do not allow certain warranty limitations, so some disclaimers may not apply to you.

16. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, K SCAN SHALL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES; LOSS OF PROFITS, DATA, GOODWILL, OR BUSINESS INTERRUPTION; RELIANCE ON AI OUTPUTS; COUNTERFEIT PRODUCTS; THIRD-PARTY FRAUD; OR RETAILER TRANSACTIONS.

K Scan's total liability for any claim shall not exceed the greater of amounts paid by you to K Scan in the preceding 12 months or \$100 USD, unless prohibited by law. Nothing in these Terms limits liability that cannot lawfully be limited under applicable consumer, privacy, or data protection law.

17. Indemnification

You agree to defend, indemnify, and hold harmless K Scan, its officers, directors, employees, contractors, affiliates, and agents from claims, damages, losses, liabilities, and expenses arising from your use of the Service, User Content, violation of these Terms, violation of law, or infringement of third-party rights. This indemnity does not apply to losses caused solely by K Scan's own violations of applicable privacy or consumer protection law where such waiver would be prohibited.

18. Suspension and Termination

K Scan may suspend or terminate access at any time for violations, suspected abuse, fraud, unlawful activity, security concerns, nonpayment, operational reasons, or risk to the Service. Upon termination, your right to use the Service ceases. Certain provisions survive termination, including privacy/data rights, intellectual property, commercial data rights, disclaimers, liability limits, indemnity, governing law, and dispute resolution.

19. Governing Law and Dispute Resolution

These Terms are governed by the laws of the State of Ohio, United States, without regard to conflict-of-law principles, except that mandatory consumer protections in your jurisdiction may apply. Before filing a claim, you agree to contact K Scan at kscanai.app@gmail.com and allow 30 days for informal resolution. Any court proceeding not subject to mandatory consumer-law venues shall be brought in state or federal courts located in Cuyahoga County, Ohio, unless applicable consumer law provides otherwise.

If K Scan adopts binding arbitration terms in a future version of the Terms, those terms will be presented in that applicable version and will include any legally required notice, opt-out, or procedural protections.

20. App Store Terms

If you download the app through the Apple App Store or Google Play, your use must also comply with applicable app-store terms. The app stores are not responsible for support, maintenance, or claims related to the Service except as required by their terms or law. Payment processing, in-app purchase, and subscription billing disclosures for Apple and Google Play purchases are described in Section 12.

21. Accessibility, ADA Compliance, and Localization

K Scan is committed to making the Service, including the K Scan mobile application and website, accessible to people with disabilities. K Scan's accessibility efforts are intended to support inclusive access and usability consistent with the Americans with Disabilities Act, where applicable, and recognized accessibility practices such as the Web Content Accessibility Guidelines.

K Scan aims to design, develop, and maintain digital experiences that can be used by people with a range of disabilities, including users who rely on screen readers, keyboard navigation, voice controls, captions, adjustable text, sufficient color contrast, or other assistive technologies. Accessibility is an ongoing effort, and K Scan may continue to test, monitor, improve, and update the Service as technologies, standards, user needs, and legal requirements evolve.

If you experience an accessibility barrier, have difficulty using any part of the Service, or need to request an accommodation or accessible alternative, please contact K Scan at:

Email: kscanai.app@gmail.com

To help K Scan respond effectively, please include, where possible: the feature or page involved, the nature of the accessibility issue, the device and browser or app version you are using, any assistive technology involved, and your preferred contact method. K Scan will make reasonable efforts to respond and, where feasible, provide the information, feature, or support through an accessible alternative.

Nothing in this Section is intended to limit K Scan's obligations under applicable accessibility law or to waive, restrict, or limit any rights available to users with disabilities under the Americans with Disabilities Act or other applicable laws.

These Terms are provided in English; translations are for convenience only unless required by law.

22. Changes to These Terms

K Scan may update these Terms from time to time. If we make material changes, we may provide additional notice where required by law. Continued use of the Service after updated Terms become effective means you accept the revised Terms, except where applicable law requires separate affirmative consent or another form of authorization.

23. Miscellaneous

These Terms and the Privacy Policy constitute the entire agreement between you and K Scan for consumer access to and use of the Service, unless additional written terms apply to a particular product or relationship.

Enterprise integrations, API access, SDK licensing, data licensing, partner insights, retailer partnerships, affiliate or commercial commerce partnerships, data processing addenda, order forms, statements of work, or other business-to-business relationships are governed by separate written agreements executed by the applicable parties. If there is a conflict between these consumer Terms and a separate executed commercial agreement, the separate commercial agreement controls solely with respect to the covered enterprise, API, SDK, data, retailer, or commercial partnership relationship.

If any provision is found unenforceable, the remaining provisions remain in effect to the fullest extent permitted by law.

Failure to enforce a provision is not a waiver.

You may not assign these Terms without consent. K Scan may assign them in connection with affiliates, restructuring, merger, acquisition, or sale of assets.

No third party has rights under these Terms unless expressly stated.

24. Contact Information

For questions about these Terms, legal notices, accessibility issues, or general policy concerns, contact:

Contact Type	Details
Email	kscanai.app@gmail.com
Website	https://kscan.app

25. Privacy Alignment Reference

The Terms and the Privacy Policy are intended to be read together. The following concepts are reflected across both documents:

Concept	Terms Position
Raw scan data	Not sold or commercially distributed to third-party data buyers.
Facial recognition / biometric surveillance	Not used for identifying individuals or biometric surveillance.
Commercial data	Certain non-sensitive commercial, analytics, preference, marketing, attribution, and inference data may be monetized where permitted by law.
Privacy choices	Rights, consent requirements, and opt-out controls are governed by the Privacy Policy and applicable law.
Retail and affiliate relationships	K Scan may earn referral, affiliate, advertising, partner reporting, or data licensing revenue.
Accessibility	K Scan is committed to accessible digital experiences for users with disabilities, including through ongoing ADA- and WCAG-informed accessibility efforts where applicable.
Subscriptions and in-app purchases	Paid subscriptions or in-app purchases may auto-renew as disclosed at checkout and may be processed by Apple or Google depending on the purchase platform.

